

and activities of its adherents. Moreover, there were many practical difficulties to be met in implementing any general principles relating to freedom of thought, conscience and religion. 109. Another view was that the difficulties stemmed from the fact that conditions concerning religion in different States varied in the extreme : in every State there were to be found not only followers of numerous religions or beliefs, among whom there were conflicting convictions, but also atheists, who maintained non- religious convictions. While religion had a sacred character for its followers, those who held non-religious beliefs were equally entitled to maintain their beliefs and to be protected against discrimination, since to them their convictions were no less sacred. It was thus necessary to establish a balance between those who professed a religion and those who did not. According to this view there could be no freedom of conscience in a State in which adherents of one religion or belief held a privileged position and there was discrimination against adherents of other religions or beliefs. Nor could there be freedom of conscience in a State in which there was discrimination against persons holding atheistic views. Separation of the Church and the State, and of the Church and the schools, was an essential guarantee of freedom of conscience. Where religion or belief was bound to the State, either officially or by ties of an ideological or economic nature, it was merely a weapon to be used by the State in carrying out its policy. 110. Members generally agreed that the Commission should not attempt to examine theoretical religious concepts, but should concentrate upon the elaboration of practical rules for freedom of religion and other beliefs which could be universally supported. 111. There was considerable discussion in the Commission of the meaning to be attributed to the word "belief", as used in the draft principles prepared by the Sub-Commission. Reference was made to the fact that in the footnote on page 1 of his Study of Discrimination in the Matter of Religious Rights and Practices Mr. Krishnaswami had stated that " In view of the difficulty of defining ' religion ', the term ' religion or belief ' is used ... to include, in addition to various theistic creeds, such other beliefs as agnosticism, free thought, atheism and rationalism ". During the discussion some members pointed out that the footnote expressed only the personal point of view of the Special Rapporteur and had no special significance. Other members supported the definition of the words " religion or belief " given in Mr. Krishnaswami's study. They pointed out that the use of these two words in the document to be drawn up would ensure freedom and non-discrimination both with respect to persons professing a religion and with respect to persons adhering to atheistic beliefs. It was also recalled that the term " religion or belief " had been used both in article 18 of the Universal Declaration of Human Rights and in article 18 of the draft Covenant on Civil and Political Rights. 112. In the view of some members the use of the term " religion or belief " to include not only those who followed a religion but also those who held non- religious ethical beliefs was wrong in principle because it gave the impression that the two were equivalent, which was not so. In their opinion religion was much more than private prayers or public worship ; it was at the basis of the whole conception of life of a religious man, permeating his thinking and his deeds in relation to his Creator, and having a profound influence upon other aspects of his life as an individual and in his bearing towards other people and towards society as a whole. They also stated that because of its unique and transcendent character and its comprehensive and pervasive nature, religion could not, in principle, be put on the same footing with agnosticism, free-thought, atheism and rationalism. On the other hand, it was pointed out that it was absurd to attempt to place religion above atheistic belief. 113. Other members, while recognizing the importance of distinguishing between religion and belief where individuals were concerned, were of the opinion that from the point of view of the State that distinction was irrelevant : the State should show the same tolerance with regard to both religion and non-religious beliefs although it should not permit freedom to be invoked to protect those who wished to attack and destroy religion. In their external manifestations, religious and non-religious beliefs should be respected equally. It was pointed out that the Sub-Commission clearly had intended the draft principles to prohibit all discrimination in matters of belief, whether religious or non- religious, as evidenced by the fact that it had used the expression " religion or belief " no less than twenty- three times, as well as by its enunciation, in paragraph 1 of part I of the draft principles, of the right of everyone to adhere or not to adhere to a religion or belief. 114. Several members strongly favoured the use of the term " religion or belief " throughout the principles, both as a matter of consistency and because the term " non-religious belief " might be interpreted as including political or other secular beliefs. In the opinion of others, the absence of the word " religion " made no difference, as the word " belief " should be interpreted in the broadest possible sense. One member felt that there was no need for the use systematically of the term " religion or belief " and in particular of the term " or belief " in certain of the draft principles, such as those having application exclusively to priests or ministers of religion. 115. Another issue which arose in the course of the general debate was that of the individual and social characteristics of religion. One view was that the draft principles were seriously defective in that they stressed mainly the freedom of the individual and did not adequately protect the rights of religious groups as such. It was maintained that the religious rights of individuals could not be guaranteed to the fullest extent unless the community character of religion was taken into account and the rights resulting therefrom were also guaranteed ; such rights included, for example, the right of a religious community to organize its adherents in groups, the right of its central authorities to give directives of a binding nature on matters of U